has been filed with the Division of the Federal Register.

Third Revised Ration Order 3 is amended in the following respects:

New sections 22.20 and 22.21 are added to Article XXII of Third Revised Ration Order 3 to read as follows:

SEC. 22.20 *Interpretations.* An interpretation rendered by an officer or employee of the Office of Price Administration with respect to any provision of this order or of General Ration Order 8 of Revised General Ration Order 5 or of Revised General Ration Order 18 or of any order, requirement, or agreement thereunder, will be regarded by the Office of Price Administration as official only if such interpretation was requested and issued in accordance with section 22.21 of this order. Action taken in reliance upon and in conformity with an official interpretation and prior to any revocation or modification thereof or to any superseding thereof by order or amendment, shall constitute action in good faith pursuant to the order, requirement or agreement to which such official interpretation relates. An official interpretation shall be applicable only with respect to the particular person to whom, and to the particular factual situation with respect to which, it is rendered, unless announced as an interpretation of general application.

SEC. 22.21 *Requirements governing interpretations*—(a) *Requests for interpretations; form and contents.* Any person desiring an official interpretation of any sugar rationing regulation, order, requirement or agreement thereunder shall request it in writing from the nearest Sugar Branch Office of the Office of Price Administration. Such request shall set forth in full the factual situation out of which the interpretative question arises and shall, so far as practicable, state the names and post office addresses of the persons involved. If the inquirer has previously requested an interpretation on the same or substantially the same facts, his request shall so indicate and shall name the official or office to whom his previous request was addressed. If the interpretation will affect operations of establishments located in more than one state, the request shall name the states in which the establishments are located. No interpretation shall be requested or given with respect to any hypothetical situation or in response to any hypothetical question.

(b) *Interpretations to be written; authorized officials.* With respect to sugar, official interpretations shall be made only in writing, and shall be signed by the Temporary Controls Administrator or by one of the following officers of the Office of Price Administration: The Commissioner, the General Counsel, an Associate or Assistant General Counsel of the Sugar Department, any Legal Branch Chief of the Sugar Department, or any Regional Sugar Attorney.

(c) *Revocation or modification of interpretation.* Any official interpretation, whether of general application or otherwise, may be revoked or modified by any official authorized to announce such interpretations of general application or by a statement or notice by the Commissioner or General Counsel of the Office of Price Administration. An official interpretation addressed to a particular person may also be revoked or modified at any time by a statement in writing mailed to such person and signed by an Associate or Assistant General Counsel, or by any Legal Branch Chief of the Sugar Department. An official interpretation addressed to a particular person by a Regional Sugar Attorney may also be revoked or modified at any time by a written statement mailed to such person and signed by the attorney, who issued it, or his successor.

(d) This section is applicable not only to Third Revised Ration Order 3, but also to General Ration Order 8, Revised General Ration Order 18, Revised General Ration Order 5 and to any other ration order issued by the Office of Price Administration.

This amendment shall become effective March 24, 1947.

Issued this 21st day of March 1947.

PHILIP B. FLEMING,
Temporary Controls Administrator.

Rationale Accompanying Amendment No. 41 to Third Revised Ration Order 3, Amendment No. 19 to Revised General Ration Order 5, Amendment No. 13 to General Ration Order 8, and Amendment No. 4 to Revised General Ration Order 18

Proposed amendment. These amendments provide a procedure to be followed in rendering official legal interpretations of any of the provisions of Third Revised Ration Order 3, Revised General Ration Order 5, General Ration Order 8 and Revised General Ration Order 18.

Reason for amendment. The members of the public and the field offices of the Office of Price Administration have been confused with respect to the proper procedure for the issuance of official legal interpretations of the various ration orders. In order to clarify this situation with respect to the issuance of authorized legal interpretations, these amendments specifically provide that official legal interpretations may only be made by the Temporary Controls Administrator, the Commissioner in Washington and by responsible members of the legal staff. The procedure set forth in these amendments with respect to the issuance of official rationing interpretations is similar to that provided for in Procedural Regulation 1 with respect to the issuance of official price interpretations.

[F. R. Doc. 47-2796; Filed, Mar. 21, 1947; 11:31 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2301]

PART 4—DELEGATIONS OF AUTHORITY

MISCELLANEOUS AMENDMENTS

Sections 4.90 and 4.91 are added to Part 4 to read as follows:

§ 4.90 *Condemnation proceedings.* The head of any bureau of this Department may approve and sign correspondence concerning pleadings, awards, or judgments in condemnation proceedings, and any other routine, incidental, or related correspondence regarding the conduct of such proceedings, without the submission of such matters for Secretarial consideration, except that requests for condemnation proceedings and declarations of taking shall be submitted to the Secretary for consideration and approval.

§ 4.91 *Title opinions.* The head of any bureau of this Department may request the Attorney General to render opinions concerning the validity of title pursuant to section 355, Revised Statutes (40 U. S. C. 255), without the submission of such requests to the Secretary for consideration or approval.

(R. S. 161; 5 U. S. C. 22)

J. A. KRUG,
Secretary of the Interior.

MARCH 13, 1947.

[F. R. Doc. 47-2678; Filed, Mar. 21, 1947; 8:45 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS

NEW MEXICO GRAZING DISTRICT NO. 1

CROSS REFERENCE: For order affecting the tabulation contained in § 162.1, see Public Land Order 356 under the Appendix to this chapter, *infra*, relating to lands within New Mexico Grazing District No. 1.

Appendix—Public Land Orders

[Public Land Order 356]

NEW MEXICO

REVOCATION OF EXECUTIVE ORDER 7544 OF JANUARY 29, 1937

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 7544 of January 29, 1937, withdrawing the following-described public lands in New Mexico for use by the Forest Service of the Department of Agriculture as the Espanola Administrative Site in connection with the administration of the Santa Fe National Forest, is hereby revoked:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 N., R. 8 E.,
Sec. 12, S½N½ and S½ lot 1, N½ and N½S½ lot 2.
T. 20 N., R. 9 E.,
Sec. 7, lots 5, 6, and E½SW¼.

The areas described aggregate 228.42 acres.

The lands are within New Mexico Grazing District No. 1. This order shall therefore become effective immediately

as to the administration of grazing on the lands by the Bureau of Land Management, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on May 9, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from May 9, 1947, to August 7, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from April 19, 1947, to 10:00 a. m. on May 9, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on May 9, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on August 8, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from July 19, 1947, to 10:00 a. m. on August 8, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on August 8, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Santa Fe, New Mexico.

The lands are rough and broken in topography and have a third to fourth rate soil which supports scant vegetation.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

MARCH 7, 1947.

[F. R. Doc. 47–2680; Filed, Mar. 21, 1947; 8:46 a. m.]

TITLE 46—SHIPPING

Chapter II—United States Maritime Commission

Subchapter F—Merchant Ship Sale Act of 1946

[Gen. Order 60, Amdt. 1 to Supp. 3]

PART 299—RULES AND REGULATIONS, FORMS, AND CITIZENSHIP REQUIREMENTS

PREWAR DOMESTIC COSTS; STATUTORY SALES PRICES

Section 299.56 *Prewar domestic costs; statutory sales prices* is amended by striking out paragraph (m) *Type C1–S–D1* (published in the FEDERAL REGISTER for August 17, 1946, 11 F. R. 8972).

(60 Stat. 41)

By order of the United States Maritime Commission.

A. J. WILLIAMS,
Secretary.

MARCH 7, 1947.

[F. R. Doc. 47–2703; Filed, Mar. 21, 1947; 8:49 a. m.]

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR, Parts 21 and 43]

PERIODIC PHYSICAL EXAMINATIONS FOR MEDICAL CERTIFICATES FOR PILOTS

Section 21.400 of the Civil Air Regulations provides that the holder of an airline transport pilot rating shall not pilot aircraft in flight unless he has met the physical requirements prescribed for such rating within the preceding 6 calendar months. Such a requirement may be interpreted that the holder of such a rating would not be permitted to fly any aircraft unless he has met the physical requirements within the preceding 6 calendar months. Pilots holding a higher pilot rating should be permitted the privilege of performing operations requiring a lower pilot rating. Therefore it is proposed to specifically provide that medical certificates appropriate to the higher pilot ratings will be permitted the privileges of medical certificates appropriate to lower pilot ratings during the period for which they are effective.

Pursuant to section 4 (a) of the Administrative Procedure Act the Safety Bureau of the Civil Aeronautics Board hereby gives notice that the Bureau will propose to the Board amendments to Parts 21 and 43 of the Civil Air Regulations as follows:

1. By amending § 21.400 to read as follows:

§ 21.400 *Periodic physical examination.* A certificated airline transport pilot shall not pilot an aircraft in operations for which he is required to possess an airline transport pilot rating unless, within the preceding 6 calendar months, he has met the physical requirements of this part by passing an examination given by an authorized airline medical examiner of the Administrator.

2. By amending § 43.402 to read as follows:

§ 43.402 *Medical certificate and renewal.* No person shall pilot an aircraft under authority of a pilot certificate issued by the Administrator, unless he has in his personal possession while piloting aircraft a medical certificate or other evidence satisfactory to the Administrator showing that he has met the physical requirements appropriate to his rating within the following time limits:

(a) Student or private pilot: 24 calendar months,

(b) Commercial pilot: 12 calendar months or 24 calendar months for operations requiring only a private pilot rating,

(c) Airline transport pilot: 6 calendar months, or 12 calendar months for operations requiring only a commercial pilot rating, or 24 calendar months for operations requiring only a private pilot rating.

These regulations are proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended.

It is the desire of the Bureau that those interested offer suggestions and comments regarding the proposed amendments. Comments in writing should be addressed to the Safety Bureau, Civil Aeronautics Board, Washington 25, D. C., for receipt within 30 days from the date of this public notice.

(52 Stat. 984, 1007; 49 U. S. C. 425, 551)

By the Safety Bureau.

[SEAL] W. S. DAWSON,
Director.

[F. R. Doc. 47–2694; Filed, Mar. 21, 1947; 8:49 a. m.]